

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

Index No.:

Purchased: \_\_\_\_\_

-----X  
JAVIER RODRIGUEZ,

Plaintiff designates

Bronx County as the place of trial

Plaintiff,

The basis of the venue is where  
plaintiff resides and the tort arose

-against-

THE CITY OF NEW YORK, GEORGE HINES P.O. OF  
THE 48 PCT., SHIELD #5160, TAX ID #943371,  
FRANKL BONILLA SGT. OF THE 48 PCT., SHIELD  
#3444, TAX ID #943010, OTHER NEW YORK CITY  
POLICE OFFICERS UNDER ARREST #B17624832  
WHOSE NAMES ARE NOT KNOWN AT THIS TIME  
N/H/A JOHN/JANE DOE I-V, AS IT PERTAINS TO  
THE INCIDENT THAT AROSE ON MAY 11, 2017  
AND NO OTHER,

**SUMMONS**

Plaintiff resides at

JAVIER RODRIGUEZ  
1015 East 179<sup>th</sup> Street  
Bronx, New York 10460

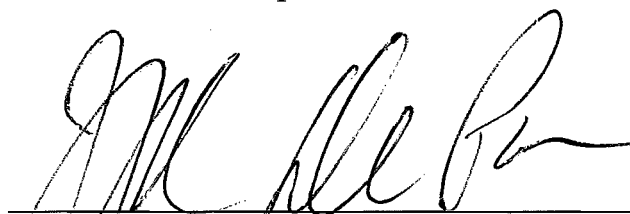
Defendants.

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TO THE ABOVE-NAMED DEFENDANT:

**YOU ARE HEREBY SUMMONED**, to answer the complaint in this  
action and to serve a copy of your answer, or if the complaint is not served with this  
summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days  
after the service of this summons, exclusive of the day of service (or within 30 days after  
the service is complete if this summons is not personally delivered to you within the State  
of New York) and, in case of your failure to appear or answer, judgment will be taken  
against you by default for the relief demanded in the complaint.

Dated: Bayside, New York  
October 9, 2018



JOHN R. DEPAOLA & ASSOCIATES PLLC

BY: JOHN R. DEPAOLA

Attorneys for Plaintiff(s)

42-40 Bell Boulevard Suite 500

Bayside, New York 11361

(718) 281-0400 / (718) 281-4000

Defendants' Addresses:

**CORPORATION COUNSEL OF THE  
CITY OF NEW YORK**  
100 Church Street  
New York, New York 10007

**GEORGE HINES P.O. OF THE 48 PCT.**  
**SHIELD #5160, TAX ID #943371**  
450 Cross Bronx Expy.  
Bronx, New York 10457

**FRANKL BONILLA SGT. OF THE 48 PCT.**  
**SHIELD #3444, TAX ID #943010**  
450 Cross Bronx Expy.  
Bronx, New York 10457

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

Index No.:

Purchased \_\_\_\_\_

-----X  
JAVIER RODRIGUEZ,

Plaintiff,

-against-

**VERIFIED COMPLAINT**

THE CITY OF NEW YORK, GEORGE HINES P.O. OF  
THE 48 PCT., SHIELD #5160, TAX ID #943371,  
FRANKL BONILLA SGT. OF THE 48 PCT., SHIELD  
#3444, TAX ID #943010, OTHER NEW YORK CITY  
POLICE OFFICERS UNDER ARREST #B17624832  
WHOSE NAMES ARE NOT KNOWN AT THIS TIME  
N/H/A JOHN/JANE DOE I-V, AS IT PERTAINS TO  
THE INCIDENT THAT AROSE ON MAY 11, 2017  
AND NO OTHER,

Defendants.

-----X

JAVIER RODRIGUEZ, by his attorneys, JOHN R. DEPAOLA & ASSOCIATES

PLLC, respectfully alleges as follows:

**AS AND FOR A FIRST CAUSE OF ACTION**

1. At all times mentioned, Plaintiff JAVIER RODRIGUEZ was a resident of Bronx County, City and State of New York.
2. At all times mentioned, Defendant CITY OF NEW YORK, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
3. On or about the 28<sup>th</sup> day of December, 2017 and within ninety (90) days after some or all of the claims herein arose, the Plaintiff served a Notice of Claim in writing sworn to on their behalf upon the Defendant CITY OF NEW YORK, by delivering a copy thereof in duplicate to the officer designated to

receive such process personally, which Notice of Claim advised the Defendant CITY OF NEW YORK, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.

4. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.
5. The Plaintiff has complied with the request of the municipal Defendant's for an oral examination pursuant to Section 50-H of the General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.
6. Upon information and belief, at all times mentioned, Defendants **GEORGE HINES P.O. OF THE 48 PCT., SHIELD #5160, TAX ID #943371, FRANKL BONILLA SGT. OF THE 48 PCT., SHIELD #3444, TAX ID #943010, OTHER NEW YORK CITY POLICE OFFICERS UNDER ARREST #B17624832 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-V**, were and are police officers of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK**.

7. On or about May 11, 2017, at approximately 1:50 P.M., in the vicinity of the corner of East 179<sup>th</sup> Street and Bronx Park Avenue, County of Bronx, State of New York the Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff **JAVIER RODRIGUEZ**, in an excessive manner about his person, causing him physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff, seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law. Plaintiff had committed no crime or violation of the law as he was a passenger in a vehicle, not the driver, he left the vehicle with a friend of his to record the police on his friend iPhone who had stopped his friends at gunpoint who were following the Honda he was in. He at no time was smoking a marijuana cigarette or passing a lit marijuana cigarette to his fellow occupants in the Honda, in fact at no time did he see marijuana in the vehicle at anytime.

**AS AND FOR A SECOND CAUSE OF ACTION**

8. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "7" with full force and effect as though set forth at length herein.
9. On or about May 11, 2017, at approximately 1:50 P.M., in the vicinity of the corner of East 179<sup>th</sup> Street and Bronx Park Avenue, County of Bronx, State of New York, the Defendants jointly and severally did place Plaintiff **JAVIER RODRIGUEZ** in imminent fear of physical contact by approaching the

Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to physically seize, strike and restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

**AS AND FOR A THIRD CAUSE OF ACTION**

10. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "9" with full force and effect as though set forth at length herein.
11. On or about May 11, 2017, at approximately 1:50 P.M., in the vicinity of the corner of East 179<sup>th</sup> Street and Bronx Park Avenue, County of Bronx, State of New York the Defendants, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained him and his liberty and then took him into custody to a police station in the County of Bronx and there charged him with the crimes on Docket No. 2017BX027026. The Plaintiff was thereafter held in custody over the course of two (2) days or approximately twenty-nine (29) hours until he was released. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement. In this instant case, Plaintiff had been picked up by his friend Jason. There were four people in his friend Jason's car and Plaintiff was seated in the right rear seat. They were on their way to get something to

eat along with some other acquaintances in the Mercedes-Benz that was following behind them. Plaintiff was merely acquainted with the occupant of the Mercedes-Benz. At some point while they were still parked, Plaintiff noticed two (2) police officers approach the Mercedes-Benz with their guns drawn. Plaintiff and another friend got out of their car and began to film the police officers to document everything that was occurring. While those police officers were dealing with the occupants in the Mercedes-Benz, additional police officers showed up at the scene, where they approached Plaintiff, took his cell phone and turned it off. Plaintiff was placed in handcuffs, searched and then taken to a precinct. Plaintiff was given a desk appearance ticket and released approximately after twenty-nine (29) hours in custody. At all times, the vehicle Plaintiff had been an occupant of was legally parked and was arrested for having the temerity to exit the vehicle he was in and video record the police on his cell phone interacting with his acquaintance in the Mercedes-Benz.

**AS AND FOR A FOURTH CAUSE OF ACTION**

12. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "11" with full force and effect as though set forth at length herein.
13. On or about May 11, 2017, at approximately 1:50 P.M., in the vicinity of the corner of East 179<sup>th</sup> Street and Bronx Park Avenue, County of Bronx, State of New York the Defendants, jointly and severally without any valid warrant, order or other legal process and without any legal right, wrongfully

searched, seized and unlawfully arrested the Plaintiff, restrained him and his liberty and then took him into custody to a police station in the County of Bronx and there charged him with the crimes on Docket No. 2017BX027026. The Plaintiff was thereafter held in custody over the course of two (2) days or approximately twenty-nine (29) hours until he was released. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement. In this instant case, Plaintiff had been picked up by his friend Jason. There were four people in his friend Jason's car and Plaintiff was seated in the right rear seat. They were on their way to get something to eat along with some other friends driving a Mercedes-Benz that was following behind them. Plaintiff doesn't really know the occupants of the Mercedes-Benz. At some point while they were still parked, Plaintiff noticed two (2) police officers approach the Mercedes-Benz with their guns drawn. Plaintiff and another friend got out of their car and began to film the police officers to document everything that was occurring. While those police officers were dealing with the occupants in the Mercedes-Benz, additional police officers showed up at the scene, where they approached Plaintiff, they took his cell phone and turned it off. Plaintiff was placed in handcuffs, searched and then taken to a precinct. Plaintiff was given a desk appearance ticket and released approximately after twenty-nine (29) hours. Plaintiff was arrested because he had the temerity to exit the vehicle he was



in and video record the actions of the police stopping his acquaintance in the Mercedes-Benz.

**AS AND FOR A FIFTH CAUSE OF ACTION**

14. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "13" with full force and effect as though set forth at length herein.
15. Upon information and belief, on or about May 11, 2017 and from that time until the dismissal of charges on or about October 12, 2017, which was a favorable termination for the accused by the Hon. Judge Collins, presiding at Bronx County Criminal Court, Part AP5, Defendants **THE CITY OF NEW YORK, GEORGE HINES P.O. OF THE 48 PCT., SHIELD #5160, TAX ID #943371, FRANKL BONILLA SGT. OF THE 48 PCT., SHIELD #3444, TAX ID #943010, OTHER NEW YORK CITY POLICE OFFICERS UNDER ARREST #B17624832 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-V**, deliberately and maliciously prosecuted Plaintiff, **JAVIER RODRIGUEZ**, an innocent man without any probable cause whatsoever, by filing or causing a criminal court complaint to be filed in the Criminal Court of the City of New York, Bronx County, for the purpose of falsely accusing the plaintiff of violations of the criminal laws of the State of New York.
16. The Defendants, jointly and severally, their agents, servants or employees failed to take reasonable steps to stop the prosecution of the Plaintiff and instead maliciously and deliberately provided false and/or incomplete

information to the District Attorney's office to induce prosecution of the Plaintiff and due to the absence of probable cause malice can be inferred.

17. The commencement of these criminal proceedings under Docket No. 2017BX027026 was malicious and began in malice and without probable cause, so that the proceedings could succeed by the Defendants.
18. As a result of the malicious prosecution, Plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution. The Plaintiff made multiple court appearances to defend his liberty against these unjust charges. In this instant case, Plaintiff had been picked up by his friend Jason. There were four people in his friend Jason's car and Plaintiff was seated in the right rear seat. They were on their way to get something to eat along with some other friends driving a Mercedes-Benz that was following behind them. Plaintiff doesn't really know the occupants in the Mercedes-Benz. At some point while they were still parked, Plaintiff noticed two (2) police officers, approach the Mercedes-Benz with their guns drawn. Plaintiff and another friend got out of their car and began to film the police officers to document everything that was occurring. While those police officers were dealing with the occupants in the Mercedes-Benz, additional police officers showed up at the scene, where they approached Plaintiff, took his cell phone and turned it off. Plaintiff was placed in handcuffs, searched and then taken to a precinct. Plaintiff was given a desk appearance ticket and released approximately after twenty-nine (29) hours in custody. It should be noted Plaintiff was arrested

due to the false statements of Sgt. Bonilla who falsely stated all the defendants in the Honda were smoking a lit marijuana cigarette and inhaling two (2) lit marijuana cigarettes and passing the cigarettes among each other. Police officer Hines was the officer who signed the criminal court complaint. The Plaintiff denies and without reservation states he was never smoking a marijuana cigarette in the vehicle and passing it to the other occupants. He maintains he was out of the vehicle with another individual video recording the police interaction with his acquaintances in the Mercedes-Benz parked behind the Honda he was in. It should be noted the Honda was legally parked at the arrest scene.

**AS AND FOR A SIXTH CAUSE OF ACTION**

**(This Cause of action only applies against the Individually named Police Officers not the City of New York or officers sued in their official capacity)**

19. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "18" with full force and effect as though set forth at length herein.
20. Defendants **GEORGE HINES P.O. OF THE 48 PCT., SHIELD #5160, TAX ID #943371, FRANKL BONILLA SGT. OF THE 48 PCT., SHIELD #3444, TAX ID #943010, OTHER NEW YORK CITY POLICE OFFICERS UNDER ARREST #B17624832 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-V**, were at all times relevant, duly appointed and acting officers of the City of New York Police Department.

21. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.
22. Plaintiff **JAVIER RODRIGUEZ** is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.
23. The Defendant **CITY OF NEW YORK** is a municipality duly incorporated under the laws of the State of New York.
24. On or about May 11, 2017, the Defendants, armed police, while effectuating the seizure of the Plaintiff **JAVIER RODRIGUEZ**, did search, seize, assault and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested, unlawfully imprisoned, assaulted, and had multiple batteries committed against him, without the Defendants possessing probable cause to do so. In this instant case, Plaintiff had been picked up by his friend Jason. There were four people in his friend Jason's car and Plaintiff was seated in the right rear seat. They were on their way to get something to eat along with some other acquaintance driving a Mercedes-Benz that was following behind them. Plaintiff doesn't really know the occupants driving the Mercedes-Benz, he was merely acquainted with them. At some point while they were still parked, Plaintiff noticed two

(2) police officers, approach the Mercedes-Benz with their guns drawn. Plaintiff and another friend got out of the car they were in and began to film the police officers to memorialize everything that was taking place. While those police officers were dealing with the occupants in the Mercedes-Benz, additional police officers showed up at the scene, where they approached Plaintiff, they took his cell phone and turned it off. Plaintiff was placed in handcuffs, searched and then taken to a precinct. Plaintiff was given a desk appearance ticket and released approximately after twenty-nine (29) hours in custody. **GEORGE HINES P.O. OF THE 48 PCT., SHIELD #5160, TAX ID #943371** was the arresting officer on the instant case. **GEORGE HINES P.O. OF THE 48 PCT., SHIELD #5160, TAX ID #943371** along with **FRANKL BONILLA SGT. OF THE 48 PCT., SHIELD #3444, TAX ID #943010** and **JOHN/JANE DOE I-V** arrested Plaintiff even though Plaintiff had not committed any violation of the law. Based on the false statements provided by **GEORGE HINES P.O. OF THE 48 PCT., SHIELD #5160, TAX ID #943371**, **FRANKL BONILLA SGT. OF THE 48 PCT., SHIELD #3444, TAX ID #943010** and/or **JOHN/JANE DOE I-V**, Plaintiff was falsely arrested and maliciously prosecuted without probable cause. At no time did Plaintiff or the occupants smoke lit marijuana cigarettes and pass them to each other, nor did the Plaintiff possess any marijuana. The statements of Sgt. Frankl Bonilla were false as contained in the criminal court complaint as the Plaintiff unequivocally stated he nor anyone else was passing a lit marijuana cigarette in the vehicle, nor did he possess marijuana or any other

contraband on his person or in his possession on the date of his arrest.

Further, the arresting officer was police officer George Hines who signed the criminal court complaint containing the false allegations as they pertained to the Plaintiff. It should be noted the vehicle Plaintiff was in, was legally parked on the street and the police had no reasonable suspicion to stop the vehicle nor probable cause to search the vehicle and arrest the person of the Plaintiff. The statements contained in the criminal court complaint of the arresting Police Officer Hines and Sgt. Bonilla were also false and these false statements and illegal actions by both these officers led to the false arrest, malicious prosecution, assault, battery and illegal search and seizure of the Plaintiff and the vehicle he was in. The Plaintiff was arrested because he had the temerity to exit the vehicle he was in and with a friend video record the actions of the police during the car stop of the Mercedes-Benz.

25. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights protected under the United States Constitution:
- a. Freedom from assault to his person;
  - b. Freedom from battery to his person;
  - c. Freedom from illegal search and seizure;
  - d. Freedom from false arrest;
  - e. Freedom from malicious prosecution;
  - f. Freedom from the use of excessive force during the arrest process;
  - g. Freedom from unlawful imprisonment;
  - h. Freedom from loss of his liberty.

- i. Freedom from being illegally strip-searched.
26. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights protected under the Fourth and Fourteenth Amendments of the United States Constitution.
27. The direct and proximate result of the Defendants' acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering, all to his detriment and deprived of his liberty.

**AS AND FOR A SEVENTH CAUSE OF ACTION**

28. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "27" with full force and effect as though set forth at length herein.
29. Defendant CITY OF NEW YORK has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.
30. THE CITY OF NEW YORK was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the

possession of a court authorized arrest, a search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff here where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.

31. THE CITY OF NEW YORK is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:
  1. Probable cause must be present before an individual such as the Plaintiff herein can be arrested.
  2. Excessive force cannot be used against an individual who does not physically resist arrest.
  3. An individual cannot be arrested for merely recording the action of police officer interacting with their acquaintances at a car stop.
32. The foregoing acts, omissions and systemic failures are customs and policies of the CITY OF NEW YORK which caused the police officers to falsely arrest, maliciously prosecute, seize illegally and search the Plaintiff commit an assault/battery to his person and denied him prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

**AS AND FOR AN EIGHTH CAUSE OF ACTION**
33. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "32" as it set forth at length herein.



34. Defendant CITY OF NEW YORK was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the CITY OF NEW YORK and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court where otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case and punitive damages.

Dated: Bayside, New York  
October 9, 2018

Yours, etc.

JOHN R. DEPAOLA & ASSOCIATES PLLC

BY:

JOHN R. DEPAOLA

*Attorneys for Plaintiff(s)*

42-40 Bell Boulevard Suite 500

Bayside, New York 11361

(718) 281-0400 / (718) 281-4000

SUPREME COURT OF THE STATE OF NEW YORK  
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JAVIER RODRIGUEZ,

Plaintiff,

-against-

## VERIFICATION

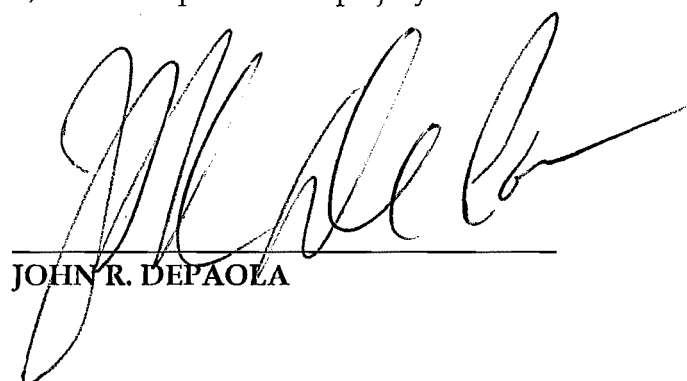
THE CITY OF NEW YORK, GEORGE HINES P.O. OF  
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I, JOHN R. DEPAOLA, an attorney admitted to practice in the courts of New York State, state that I am a member of the firm of JOHN R. DEPAOLA & ASSOCIATES PLLC, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York  
October 9, 2018

  
\_\_\_\_\_  
JOHN R. DEPAOLA

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

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JAVIER RODRIGUEZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, GEORGE HINES P.O. OF THE 48 PCT., SHIELD #5160, TAX ID #943371, FRANKL BONILLA SGT. OF THE 48 PCT., SHIELD #3444, TAX ID #943010, OTHER NEW YORK CITY POLICE OFFICERS UNDER ARREST #B17624832 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-V, AS IT PERTAINS TO THE INCIDENT THAT AROSE ON MAY 11, 2017 AND NO OTHER,

Defendants.

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SUMMONS AND VERIFIED COMPLAINT

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JOHN R. DEPAOLA & ASSOCIATES PLLC  
BY: JOHN R. DEPAOLA  
Attorney for Plaintiff(s)  
42-40 Bell Boulevard  
Bayside, NY 11361  
Tel. (718) 281-0400

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To: CORPORATION COUNSEL OF NEW YORK CITY

Attorney(s) for Defendants

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Service of a copy of the within is hereby admitted.

Dated

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Attorney(s) for